

Court No. - 4

Case :- CONTEMPT APPLICATION (CIVIL) No. - 2214 of 2017

Applicant :- M/S Tulsi Castle A Partnership Firm Thru Partner Ajay Tulsi

Opposite Party :- Ashutosh Kumar Srivastava G.M. Lko Electric Supply Admin. And

Counsel for Applicant :- Madan Gopal Misra

Counsel for Opposite Party :- Amit Kumar Dwivedi

Hon'ble Rajesh Singh Chauhan,J.

1. Heard learned counsel for the petitioner and Sri Amit Kumar Dwivedi, learned counsel for the opposite parties.

2. The Writ Court has passed the order dated 09.05.2017 passed in Writ Petition No. 10091(M/B) of 2017 which reads as under:

"Heard Mr. J.P. Mathur, learned counsel for the petitioner, Mr. Amit Kumar Dwivedi, learned counsel for the respondent no.3 and 4. as well as Mr. Madan Gopal Mishra, learned counsel for the respondent no.5.

The petitioner has prayed for issuing a writ of mandamus to the opposite party to provide electricity supply to the petitioner's company at a portion of premises No. 12, Rani Laxmi Bai Marg, Lucknow for running " Hazart Darbar" restaurant & bar. Earlier the petitioner had instituted a writ petition being writ Petition No. 4503 (MB) of 2017, however, he withdrew it to avail the remedy as is provided under the U.P. Electricity Supply Code 2005.

Learned counsel for the petitioner has submitted that accordingly he had approached the Electricity Authority but nothing has been done in the matter, therefore, he has come forward to invoke the jurisdiction of this Court.

We are of the view that on the issue in question definitely it is successive writ petition and that being so it is dismissed. However, since the petitioner's application is pending consideration with the Electricity Authority, we permit him to pursue his application, which shall be disposed of by providing opportunity of hearing to the respondent no.5, who is being represented by Mr. Madan Gopal Mishra, learned Advocate. Mr. Mishra, has submitted that the petitioner's credential are itself doubtful, which require examination before issuing any order of electricity connection.

In view of the aforesaid submission, we hereby further direct the Electricity Authority to take care the submissions above and take decision thereon after providing opportunity of hearing to the respondent no.5.

In the result, the writ petition stands dismissed."

3. Sri Amit Kumar Dwivedi has drawn attention of this Court towards Paragraph Nos. 10, 11 as well as 18 of the short counter affidavit filed on 18.12.2017 which read as under:

"10. That thereafter considering the grounds taken in the objection dated 31.05.2017 submitted by said petitioner/applicant in above stated contempt petition and also the shortcomings found in the application form for energy submitted by M/s Sai Limited. The Sub Divisional Officer of the Electricity Department rejected the Application Form for energy by passing reasoned order dated 12.06.2017. A photocopy of the order/letter dated is being annexed as

Annexure No. SCA-4 to this affidavit.

11. That in view of the facts stated above the order dated 09.05.2017 passed in writ petition no. 10091 (M/B) of 2017 has been complied with in letter and spirit.

18. That in order passed in review application no. 52587 of 2017 In re: writ petition no. 10091 of 2017 it is stated that counsel for applicant had submitted that the petitioner's application has already been disposed of by electricity authority, as stated below "Mr. Madan Gopal Mishra, learned counsel for the respondents, at this stage, submitted that the petitioner's application has already been disposed of by the electricity authorities. His submission is recorded. The review petition is hereby dismissed." The counsel for the applicant has not raised any objection or issue regarding the disposal of application as ordered by the Hon'ble Court in W.P. No. 10091(M/B) 2017. A copy of the order dated 20.07.2017 passed by Hon'ble High Court is annexed as Annexure No. SCA-8 to this affidavit."

4. The paper book reveals that no reply/objection to the aforesaid short counter affidavit has been filed.

5. Accordingly, the contempt petition is **dismissed**.

6. Notices, if any, are discharged.

7. However, it is always open for the petitioner to approach the competent authority/competent court of law for redressal of grievance of the petitioner, if any.

[Rajesh Singh Chauhan,J.]

Order Date :- 1.11.2023

kkv/